

Court No. - 39

Case :- WRIT - C No. - 36136 of 2014

Petitioner :- Bajroodeen

Respondent :- State Of U.P. & 3 Others

Counsel for Petitioner :- Sanjay Singh

Counsel for Respondent :- C.S.C., Chandan Agrawal

Hon'ble Krishna Murari, J.

Hon'ble Ashwani Kumar Mishra, J.

It is contended on behalf of the petitioner that despite deposit of the bills and there being no outstanding dues against the petitioner, the respondent no.2 has issued recovery citation for a sum of Rs.96,655/- towards electricity dues, without any rhyme or reason.

Sri Swaran Kumar Tripathi, who has accepted notice on behalf of the respondent no.2, prays for and is allowed ten day's time to seek instructions in the matter and/or to file counter affidavit.

List/put up as fresh on 28.7.2014, till then no coercive action shall be taken against the petitioner in pursuance to the impugned recovery citation dated 31.5.2014.

Order Date :- 16.7.2014

Ashok Kr.

Court No. - 39

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Petitioner :- Bajroodeen

Respondent :- State Of U.P. & 3 Others

Counsel for Petitioner :- Sanjay Singh

Counsel for Respondent :- C.S.C., Chandan Agrawal

Hon'ble Krishna Murari, J.

Hon'ble Ashwani Kumar Mishra, J.

Sri Shrawan Kumar Tripathi, learned counsel for respondents no. 2 & 3, on the basis of instruction, states that the petitioner was having a electricity connection earlier being connection no. 9077/262905 for which he applied for permanent disconnection. Physical verification was carried out and a sum of Rs.1,33,853/- was found to be due against the petitioner for the said connection. He further submits that a sum of Rs. 46,015/- was given waiver to the petitioner and accordingly recovery of balance amount Rs.87,838/- was issued but he failed to deposit the said amount.

It appears that the petitioner, without clearing the outstanding dues of earlier connection, got a fresh connection and has approached this Court challenging the recovery proceeding on the ground that he has paid off all the bills. The factum of earlier connection and the outstanding dues has been concealed by the petitioner.

Copy of the instruction filed by Sri Shrawan Kumar Tripathi is taken on record.

Learned counsel for the petitioner prays for and is allowed a week's time to seek instruction in this regard from the petitioner.

Put up as fresh on 5th August, 2014.

Order Date :- 28.7.2014

nd

Court No. - 39

Case :- WRIT - C No. - 36136 of 2014

Petitioner :- Bajroodeen

Respondent :- State Of U.P. & 3 Others

Counsel for Petitioner :- Sanjay Singh

Counsel for Respondent :- C.S.C., Chandan Agrawal, Sharwan Kr. Tripathi

Hon'ble Krishna Murari, J.

Hon'ble Ashwani Kumar Mishra, J.

Learned counsel for the petitioner prays for and is allowed a week's further time to seek instruction in the matter.

Put up as fresh on 13th August, 2014.

Interim order shall remain operative till 13th August, 2013.

Order Date :- 5.8.2014

nd

Court No. - 39

Case :- WRIT - C No. - 36136 of 2014

Petitioner :- Bajroodeen

Respondent :- State Of U.P. & 3 Others

Counsel for Petitioner :- Sanjay Singh

Counsel for Respondent :- C.S.C., Chandan Agrawal, Sharwan Kr. Tripathi

Hon'ble Krishna Murari, J.

Hon'ble Ashwani Kumar Mishra, J.

There is an issue whether the petitioner was already having a electricity connection earlier and concealing the fact he obtained subsequent connection.

Learned counsel for the petitioner insists that prior to present connection the petitioner was not having any other connection nor any payment in that regard has ever been made. He only made an application for present connection and is paying regular bill.

Sri Swaran Kumar Tripathi, learned counsel for the respondent Corporation shall produce the original record pertaining to the earlier connection, if any, and present connection of the petitioner.

Put up as fresh on 28th August, 2014.

Order Date :- 13.8.2014
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Court No. - 39

Case :- WRIT - C No. - 36136 of 2014

Petitioner :- Bajroodeen

Respondent :- State Of U.P. & 3 Others

Counsel for Petitioner :- Sanjay Singh

Counsel for Respondent :- C.S.C.,Chandan Agrawal,Sharwan Kr.Tripathi

Hon'ble Krishna Murari,J.

Hon'ble Ashwani Kumar Mishra,J.

Learned counsel for the respondent Corporation states that this Division was created for the first time in 2006 and before that, this was being looked after by Division-I. The record produced before us are from 2006. The earlier records have not been produced. It is further submitted that earlier records are with the Division-I from where it shall be procured and produced along with the present record before the Court on 15th September, 2014.

Put up on 15th September, 2014.

Interim order to continue till 15th September, 2014.

Order Date :- 28.8.2014/nd

Court No. - 39

Case :- WRIT - C No. - 36136 of 2014

Petitioner :- Bajroodeen

Respondent :- State Of U.P. & 3 Others

Counsel for Petitioner :- Sanjay Singh

Counsel for Respondent :- C.S.C., Chandan Agrawal, Sharwan Kr. Tripathi

Hon'ble Krishna Murari, J.

Hon'ble Ashwani Kumar Mishra, J.

In compliance of the order dated 28-08-2014, learned counsel for the respondent Corporation has produced the record before us. After looking into the record, learned counsel for the respondent Corporation has conceded before us that subsequent connection was issued for a different premises. In so far as the first connection obtained by the petitioner at the different premises is concerned, it is an admitted fact that the bills are alleged to have been raised from 02-03-1999 to 27-05-2008. It is also alleged that no payment has ever been made though arrears is reflected in the bill for the subsequent months. Under clause 4.38 of the Electricity Supply Code, 2005 the permanent disconnection was liable to be made within six months but it was made on 30-07-2011 and thereafter, a final bill of the outstanding amount was prepared and sent to the petitioner.

Learned counsel for the petitioner contends that the recovery could not be after expiry of the period of two years.

Let a counter affidavit be filed by the respondent Corporation within three weeks.

Rejoinder affidavit, if any, may be filed within two weeks thereafter.

List after expiry of the aforesaid period.

Until further orders of this court, the proceedings initiated against the petitioner for recovery of outstanding dues shall be kept in abeyance.

Order Date :- 15.9.2014

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Court No. - 39

Case :- WRIT - C No. - 36136 of 2014

Petitioner :- Bajroodeen

Respondent :- State Of U.P. & 3 Others

Counsel for Petitioner :- Sanjay Singh

Counsel for Respondent :- C.S.C., Chandan Agrawal, Sharwan Kr. Tripathi

Hon'ble Tarun Agarwala, J.

Hon'ble Shri Narayan Shukla, J.

List has been revised. No one appears to press the writ petition. It is, accordingly, dismissed in default.

Interim order, if any, stands vacated.

Order Date :- 28.10.2014

AKJ

(Shri Narayan Shukla, J.) (Tarun Agarwala, J.)